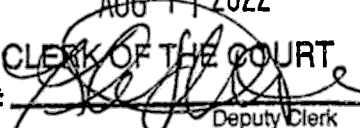


FILED
Superior Court of California
County of San Francisco

AUG 11 2022

CLERK OF THE COURT
BY: 
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

STEPHEN RUSSELL, an individual,

Plaintiff,

vs.

TARA WALSH, an individual; and
DOES 1 to 20,

Defendants.

Case No. CGC-18-570137

SECOND AMENDED JUDGMENT
ON JURY VERDICT

TARA WALSH, an individual,

Cross-Complainant,

vs.

STEPHEN RUSSELL, an individual, and
DOES 1-10,

Cross-Defendant.

Plaintiff/Cross-Defendant Stephen Russell's ("Russell") main action against
Defendant/Cross-Complainant Tara Walsh, in *pro per* ("Walsh"), came on regularly for trial on

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Second Amended Judgment on Jury Verdict
Russell v. Walsh, et al., San Francisco Superior Court Case No. CGC-18-570137

February 16, 2022, in Department 504 of the Superior Court, the Hon. Garrett L. Wong presiding; Russell, appearing by attorney Brian D. Waller, Peckar & Abramson, P.C.; and Walsh appearing in *propria persona*.

A jury of persons was regularly impaneled and sworn. Witnesses were sworn and testified. After hearing the evidence and arguments of counsel, the jury was duly instructed by the Court and the cause was submitted to the jury. The jury deliberated and thereafter returned into court with its verdict as follows:

Russell is entitled to judgment against Walsh in the amount of \$325,000.00, consisting of past economic loss in the amount of \$185,000.00, past noneconomic loss, including physical pain/mental suffering in the amount of \$90,000.00, and punitive damages in the amount of \$50,000.00.

On April 15, 2022, the Court granted Walsh on her motion under Code of Civil Procedure section 629(a), a partial JNOV in Walsh's favor regarding the \$50,000.00 award of punitive damages and reduced the verdict by that amount.

On April 15, 2022, the Court denied Walsh's motion to strike costs and awarded Russell, as prevailing party, an award of costs in the amount of \$6,607.82 under Code of Civil Procedure section 1033.5 *et seq.*

Upon further consideration, the Court revises the award of costs from \$6,607.82 to \$5,275.87 because expenses of \$1,331.95 that were attributed to a court reporter's Real Time feed are not allowable by statute.

It appearing by reason of said verdict that: Russell is entitled to judgment against Walsh on Russell's main action; and

Walsh's Cross-Complaint against Russell was dismissed, with prejudice, on April 14, 2021.

On July 7, 2022, the Court granted Russell's motion for judgment of dismissal granting

1 costs on Walsh's Cross-Complaint and awarded Russell, as prevailing party, an award of
2 \$51,804.87 under Code of Civil Procedure section 1033.5 *et seq.*

3 It appearing by reason of said dismissal of Walsh's Cross-Complaint that: Russell is
4 entitled to judgment against Walsh on Walsh's Cross-Complaint;

5 NOW, THEREFORE, IT IS ORDERED, ADJUDGED AND DECREED that said
6 Plaintiff/Cross-defendant Stephen Russell have and recover from said Defendant/Cross-
7 Complainant Tara Walsh the sum of \$275,000.00, together with costs and disbursements in the
8 amount of \$5,275.87 on Russell's main action and costs and disbursements in the amount of
9 \$51,804.87 on Walsh's Cross-Complaint, for a total judgment amount of \$332,080.74, with
10 interest thereon at the rate of ten percent (10%) per annum from the date of the entry of this
11 judgment until paid.

12 Dated: August 11, 2022



13 GARRETT L. WONG
14 JUDGE OF THE SUPERIOR COURT
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FILED
San Francisco County Superior Court

FEB 22 2022

CLERK OF THE COURT

By: [Signature]

Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED JURISDICTION**

STEPHEN RUSSELL, an individual

Plaintiff,

v.

TARA WALSH, an individual; and
DOES 1-20,

Defendants.

CASE NO. CGC-18-570137

VERDICT FORMS

VF-1301 Battery—Self-Defense/Defense of Others at Issue

We answer the questions submitted to us as follows:

1. Did Tara Walsh touch Stephen Russell or cause Stephen Russell to be touched with the intent to harm or offend him?

☒ Yes ☐ No

If your answer to question 1 is yes, then answer question 2. If you answered no, stop here, answer no further questions, and have the presiding juror sign and date this form.

2. Did Stephen Russell consent to be touched?

Yes ☒ No

If your answer to question 2 is no, then answer question 3. If you answered yes, stop here, answer no further questions, and have the presiding juror sign and date this form.

3. Was Stephen Russell harmed or offended by Tara Walsh's conduct?

☒ Yes ☐ No

If your answer to question 3 is yes, then answer question 4. If you answered no, stop here, answer no further questions, and have the presiding juror sign and date this form.

4. Would a reasonable person in Stephen Russell's situation have been offended by the touching?

☒ Yes ☐ No

If your answer to question 4 is yes, then answer question 5. If you answered no, stop here, answer no further questions, and have the presiding juror sign and date this form.

5. Did Tara Walsh reasonably believe that Stephen Russell was going to harm her?

Yes ☒ No

If your answer to question 5 is yes, then answer question 6. If you answered no, skip question 6 and answer question 7.

6. Did Tara Walsh use only the amount of force that was reasonably necessary to protect herself?

Yes ☐ No

If your answer to question 6 is no, then answer question 7. If you answered yes, stop here, answer no further questions, and have the presiding juror sign and date this form.

7. What are Stephen Russell's damages?

a. Past economic loss

\$ 185,000

lost earnings

\$

lost profits	\$ 0
medical expenses	\$ 0
other past economic loss	\$ 0

Total Past Economic Damages: \$ 185,000

b. Future economic loss

lost earnings	\$ 0
lost profits	\$ 0
medical expenses	\$ 0
other future economic loss	\$ 0

Total Future Economic Damages: \$

c. Past noneconomic loss, including physical pain/mental suffering: \$ 90,000

d. Future noneconomic loss, including physical pain/mental suffering: \$

TOTAL DAMAGES: \$ 25,000

Signed:



Presiding Juror

Dated: 02/22/2022

After all verdict forms have been signed, notify the court attendant that you are ready to present your verdict in the courtroom.

VF-1601 Intentional Infliction of Emotional Distress—Affirmative Defense—Privileged Conduct

We answer the questions submitted to us as follows:

1. Was Tara Walsh exercising her legal rights or protecting her economic interests?

Yes

☒ No

If your answer to question 1 is yes, then answer question 2. If you answered no, skip questions 2 and 3 and answer question 4.

2. Was Tara Walsh's conduct lawful and consistent with community standards?

Yes

No

If your answer to question 2 is yes, then answer question 3. If you answered no, skip question 3 and answer question 4.

3. Did Tara Walsh have a good-faith belief that she had a legal right to engage in the conduct?

Yes

No

If your answer to question 3 is no, then answer question 4. If you answered yes, stop here, answer no further questions, and have the presiding juror sign and date this form.

4. Was Tara Walsh's conduct outrageous?

☒ Yes

No

If your answer to question 4 is yes, then answer question 5. If you answered no, stop here, answer no further questions, and have the presiding juror sign and date this form.

5. Did Tara Walsh intend to cause Stephen Russell emotional distress?

or

Did Tara Walsh act with reckless disregard of the probability that Stephen Russell would suffer emotional distress as a result of her conduct?

☒ Yes

No

If your answer to question 5 is yes, then answer question 6. If you answered no, stop here, answer no further questions, and have the presiding juror sign and date this form.

6. Did Stephen Russell suffer severe emotional distress?

☒ Yes

☐ No

If your answer to question 6 is yes, then answer question 7. If you answered no, stop here, answer no further questions, and have the presiding juror sign and date this form.

7. Was Tara Walsh's conduct a substantial factor in causing Stephen Russell's severe emotional distress?

☒ Yes

☐ No

If your answer to question 7 is yes, then answer question 8. If you answered no, stop here, answer no further questions, and have the presiding juror sign and date this form.

8. What are Stephen Russell's damages?

a. Past economic loss

\$ 0

lost earnings

\$ 0

lost profits

\$ 0

medical expenses

\$ 0

other past economic loss

\$ 0

Total Past Economic Damages: \$ 0

b. Future economic loss

lost earnings

\$ 0

lost profits

\$ 0

medical expenses

\$ 0

other future economic loss

\$ 0

Total Future Economic Damages: \$ 0

c. Past noneconomic loss, including physical pain/mental

\$ 0

xxdsuffering:

d. Future noneconomic loss, including physical pain/mental

\$ 0

suffering:

TOTAL DAMAGES: \$ 0

Signed:



Presiding Juror

Dated: 02/22/2022

After all verdict forms have been signed, notify the court attendant that you are ready to present your verdict in the courtroom.

VF-3900, Punitive Damages

We answer the questions submitted to us as follows:

1. Did Tara Walsh engage in the conduct with malice, oppression, or fraud?

☒ Yes

☐ No

If your answer to question 1 is yes, then answer question 2. If you answered no, stop here, answer no further questions, and have the presiding juror sign and date this form.

2. What amount of punitive damages, if any, do you award Stephen Russell?

\$ 50,000

Signed:



Presiding Juror

Dated: 02/22/2022

After all verdict forms have been signed, notify the court attendant that you are ready to present your verdict in the courtroom.

VF- Domestic Violence in Violation of Cal. Civ. Code § 1708.6

We answer the questions submitted to us as follows:

1. Did Tara Walsh abuse Stephen Russell by inflicting injury upon him?

☒ Yes ☐ No

If your answer to question 1 is yes, then answer question 2. If you answered no, stop here, answer no further questions, and have the presiding juror sign and date this form.

2. Is Tara Walsh a former spouse or former cohabitant of Stephen Russell, or was she in a dating relationship with Stephen Russell, or does she have a child with Stephen Russell?

☒ Yes ☐ No

If your answer to question 2 is yes, then answer question 3. If you answered no, stop here, answer no further questions, and have the presiding juror sign and date this form.

3. Was Stephen Russell damaged by Tara Walsh's conduct?

☒ Yes ☐ No

If your answer to question 3 is yes, then answer question 4. If you answered no, stop here, answer no further questions, and have the presiding juror sign and date this form.

4. Did Tara Walsh reasonably believe that Stephen Russell was going to harm her?

☐ Yes ☒ No

If your answer to question 4 is yes, then answer question 5. If you answered no, skip question 5 and answer question 6.

5. Did Tara Walsh use only the amount of force that was reasonably necessary to protect herself?

☐ Yes ☐ No

If your answer to question 5 is no, then answer question 6. If you answered yes, stop here, answer no further questions, and have the presiding juror sign and date this form.

6. What are Stephen Russell's damages?

a. Past economic loss	\$ 0
lost earnings	\$ 0
lost profits	\$ 0
medical expenses	\$ 0
other past economic loss	\$ 0

Total Past Economic Damages: \$ 0

b. Future economic loss

lost earnings	\$ 0
lost profits	\$ 0
medical expenses	\$ 0
other future economic loss	\$ 0

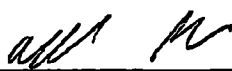
Total Future Economic Damages: \$ 0

c. Past noneconomic loss, including physical pain/mental suffering: \$ 0

d. Future noneconomic loss, including physical pain/mental suffering: \$ 0

TOTAL DAMAGES: \$ 0

Signed:



Presiding JurorDated: 2/22/2022

After all verdict forms have been signed, notify the court attendant that you are ready to present your verdict in the courtroom.

VF-5001. General Verdict Form—Single Plaintiff—Single Defendant—Multiple Cause of Action

For each claim, select one of the two options listed.

On Stephen Russell's claim for battery,

☒ we find in favor of Stephen Russell and against Tara Walsh.

☐ we find in favor of Tara Walsh

On Stephen Russell's claim for intentional infliction of emotional distress,

☒ we find in favor of Stephen Russell and against Tara Walsh.

☐ we find in favor of Tara Walsh.

On Stephen Russell's claim for Domestic Violence in Violation of Cal. Civ. Code § 1708.6,

☒ we find in favor of Stephen Russell and against Tara Walsh.

☐ we find in favor of Tara Walsh.

Complete the section below only if you find in favor of Stephen Russell on at least one of his claims.

We award Stephen Russell the following damages: \$ 35,000.

Signed:



Presiding Juror

Dated: 2/22/2022

After all verdict forms have been signed, notify the clerk that you are ready to present your verdict in the courtroom.